

DEPARTMENT OF VETERANS AFFAIRS

**Justification and Approval (J&A)
For
Other Than Full and Open Competition**

Acquisition Plan Action ID: 36C255-25-AP-0814

- 1. Contracting Activity:** Department of Veterans Affairs, VISN 15, Marion VA Medical Center, 2401 West Main St., Marion, IL 62959 and Evansville Health Care Center, 6211 East Waterford Blvd., Evansville, IN 47715.
2237#: 657-25-2-2702-0015 Marion
657-25-2-2702-0017 Evansville
- 2. Nature and/or Description of the Action Being Approved:** This is a new firm fixed price contract. This requirement is an ADD-ON to the current contract 36C25523P0576.
- 3. Description of Supplies/Services Required to Meet the Agency's Needs:** This is a one-time purchase is to procure two (2) additional Eyecon Model 9430 with calibration, and installation. It will include two (2) Eyecon Interface Controllers and two (2) one year Monthly Subscriptions and support. The new tablet counting units must support interfacing with ScriptPro to maintain the existing workflow and practices currently utilized. ScriptPro is currently operational on the network. National BAA for ScriptPro is already in place. Licenses for existing approved network devices/equipment in place (already purchased) on station. The estimated value of the proposed action is \$42,271.00 and the estimated delivery date is 90 days ARO.
- 4. Statutory Authority Permitting Other than Full and Open Competition:** 41 USC §3304(a)(5), 38 U.S. Code § 8127(c), as implemented by FAR 6.302-5 (Authorized or Required by Statute). COs may use the non-competitive (sole source) procedures authorized in [VAAR 819.7008 \(DEVIATION\)](#) or [VAAR 819.7009 \(DEVIATION\)](#) up to \$5,000,000. Check the specific VAAR clause used below:
(X) 819.7008 Sole source awards to a certified service-disabled veteran-owned small business;
- 5. Demonstration that the Contractor's Unique Qualifications and/or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):** The ScriptPro Equipment is proprietary and may only be purchased through ScriptPro or from its authorized distributor, Veterans Healthcare Supply Solutions. Veterans Healthcare Supply Solutions is a Service Disabled Veteran Owned Small Business (SDVOSB). ScriptPro is the sole source service provider of the ScriptPro Customer Technical Support Plan. ScriptPro supports the product direct throughout the United States under the Customer Technical Support Plan. ScriptPro also sells the Customer Technical Support Plan through Veterans Healthcare Supply Solutions if purchased with new Equipment orders. The anticipated award price is \$42,271.00 which is a fair and reasonable price offering best value to the Government. The business, Veterans Healthcare Supply Solutions is a certified SDVOSB. A determination has been made that Veterans Healthcare Supply Solutions is a responsible source. Authority of 38 U.S.C. 8127(c) allows sole source awards to SDVOSB.
- 6. Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable, including whether a notice was or will be publicized as required by FAR Subpart 5.2 and, if not, which exception under FAR 5.202 applies:** Market research determined that the Eyecon 9430 could be obtained through ScriptPro an authorized distributor of Avery Weigh-Tronix. Avery Weigh-Tronix does allow their authorized resellers, ScriptPro, to sub out their products through Service Disabled Veteran Owned Small Businesses such as Veterans Healthcare Supply Solutions. The ScriptPro Equipment is proprietary and can be purchased through its authorized distributor, Veterans Healthcare Supply

Solutions. ScriptPro sells the Customer Technical Support Plan through Veterans Healthcare Supply Solutions if purchased with new Equipment orders.

Sources Sought Synopsis: Sources sought 36C25525Q0191 was issued on 02-12-2025 to provide the Eyecon 9430 and Eyecon Interface Controller with installation and one (1) year subscription of support to be used at the Marion, IL VA Medical Center Pharmacy and in the Evansville, IN Outpatient Clinic with minimum technical specifications and requirement to be able to integrate with current ScriptPro equipment. There were four responses. There was only one source, ScriptPro, that was an authorized distributor of Avery Weigh-Tronix and only one SDVOSB that was able to purchase the EyeCon 9430, the Eyecon Interface Controller and the ScripPro subscription support through the distributor.

7. Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:

Reviewed previously awarded contract 36C25523P0576 from 2023 and determined prices were fair and reasonable.

8. Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:

The business met the eligibility criteria outlined in VAAR 819.7003 (Deviation), they are certified in VetCert and the action is below the \$5 million threshold.

9. Any Other Facts Supporting the Use of Other than Full and Open Competition:

None. Refer to authority under 38C USC 8127(c) for sole source awards to verified SDVOSBs.

10. Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:

AB Martin Services Inc
BHPE LLC
Pharmacy Technology Solutions LLC
TrillaMed LLC
Veterans Healthcare Supply Solutions
ScriptPro USA Inc

11. A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:

No actions re planned. *The procurement is based on the requirements of the facilities and compatibility to their needs and what businesses have to offer.*

12. Requirements Certification:

I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

ERIKA
KOBULNICKY
Erika Kobulnicky
Contracting Specialist
NCO 15

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KOBULNICKY
Date: 2025.03.03
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Date

13. Approvals in accordance with the VHAPM Part 806.3 OFOC SOP: *This part if filled out by Contracting Staff as part of the Justification*

- a. **Contracting Officer or Designee's Certification (required)**: I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

LISA BUCHANAN

Digitally signed by LISA

BUCHANAN

Date: 2025.03.04 07:44:01 -06'00'

Lisa Buchanan
Contracting Officer
NCO 15

Date

- b. **One Level Above the Contracting Officer (Required over the SAT but not exceeding \$750K)**: I certify the justification meets requirements for other than full and open competition.

Jeanine Wallace
Branch Chief – Pharmacy, Laboratory and Transportation Services (PLTS)
NCO 15

Date

- c. **VHA RPO HCA Review and Approval**: I have reviewed the foregoing justification and find it to be complete and accurate to the best of my knowledge and belief and recommend approval (if over \$75 million) or approve (\$750K to \$75 million) for other than full and open competition.

A.J. Raiber
VHA Head of Contracting Activity (HCA)

Date